

24SMCV05968 24SMCV05968

County: los-angeles

Division: Civil Law and Motion

Department: 205

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Case Number: 24SMCV05968 Hearing Date: June 29, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

NATALIE MELNIK,

Plaintiff,

v.

KAINOA KILCHER and DOES 1 through
50, inclusive,

Defendants.

KAINOA KILCHER,

Cross-Complainant

v.

NATALIE MELNIK, and DOES 1
through 20, inclusive,

Cross-Defendants.

Case No.:

24SMCV05968

Hearing Date: 06/29/2026

Trial Date:

N/A

[TENTATIVE] RULING RE:

DEFENDANT KAINOA KILCHER'S MOTION TO SET ASIDE ORDER STRIKING ANSWER,
TERMINATING SANCTION, AND ENTRY OF DEFAULT

Background

This a personal
injury action.

On December 9,
2024, Plaintiff filed this action alleging causes of action for negligence,
assault, battery, intentional infliction of emotional distress, negligent
infliction of emotional distress, false imprisonment, and sexual abuse.

On August 8, 2025,
Defendant filed an answer to the Complaint, but then failed to appear the Case
Management Conference on November 7, 2025. Accordingly, the Court issued an
Order to Show Cause why Sanctions should not be imposed for Defendant's failure
to appear and failure to submit a case management statement. The Court set a hearing on the Order to Show
Cause for January 8, 2026.

On January 8,
2026, Defendant failed to appear or other respond to the Order to Show
Cause. The Court struck Defendant's
answer and entered default.

On May 28, 2026,
Defendant filed the instant motion to set aside default.

On June 15, 2026, Plaintiff

filed an opposition.

On June 18, 2026, Defendant
filed a reply.

Legal Standard

Code Civil Procedure

section 473, subd. (b) provides for two distinct types of relief from a default -- commonly differentiated as “discretionary” and “mandatory.” “Under the discretionary relief provision, on a showing of ‘mistake, inadvertence, surprise, or excusable neglect,’ the court has discretion to allow relief from default. Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of ‘mistake, inadvertence, surprise, or neglect,’ the court must vacate any ‘resulting default judgment or dismissal entered.’” (Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 615-616.)

The application for relief must be made no more than six months after the judgment, dismissal, order, or proceeding was taken. (Ibid.) And the application must be “accompanied by a copy of the answer or other pleading proposed to be filed therein”. (Ibid.)

“It is settled that the law favors a trial on the merits. . . and therefore liberally construes section 473.” (Bonzer v. City of Huntington Park (1993) 20 Cal.App.4th 1474, 1477.) “Doubts in applying section 473 are resolved in favor of the party seeking relief from default. . . and if that party has moved promptly for default relief, only slight evidence will justify an order granting such relief.” (Id. at 1477-78.)

Applications seeking

relief under the mandatory provision of §473 must be “accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc., §473, subd. (b).) The mandatory provision further adds that “whenever relief is granted based on an attorney's affidavit of fault [the court shall] direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.” (Ibid.)

Code of Civil Procedure

section 473(d) addresses a motion to vacate a void judgment or order. That section states, "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).)

Analysis

Defendant moves to set

aside this Court's January 8, 2026 Order which struck Defendant's answer and entered default against Defendant. Defendant argues the January 8, 2026 Order must be set aside, pursuant to both Code of Civil Procedure section 473, subdivisions (b) and (d). The Court will first address the motion under Code of Civil Procedure section 473, subdivision (d).

Whether the Order is Void under CCP § 473(d)

Here, Defendant argues

the January 8, 2026 Order must be set aside because it is void. Specifically, Defendant argues he was not properly served with the Statement of Damages before Plaintiff sought default judgment. Defendant then argues Plaintiff's subsequent service of the Statement of Damages by electronic service was invalid because Defendant, who is in pro per, never expressly consented to receive documents by electronic means. In opposition, Plaintiff argues Defendant was served via publication with the Statement of Damages on July 18, 2025.

Here,

the Court finds that the January 8, 2026 Order is not void. To begin with, the Court has not (as of the posting of this tentative ruling) issued a default judgment. The Court's January 8, 2026 Order struck Defendant's answer and entered default against him – not default judgment. The Court does note, however, that Defendant's argument that the January 8, 2026 Order is void because he was not served with the Statement of Damages is without merit. Defendant was served with the Statement of Damages via publication on July 18, 2025, which Defendant includes as the last page to his Exhibit C.

Therefore,
the January 8, 2026, Minute Order is not void and Defendant's motion is denied
on these grounds.

Discretionary Relief under CCP § 473(b)

Here, given Defendant
is self-represented, he is only able to move for discretionary relief under
Code of Civil Procedure section 473, subdivision (b).

Defendant has not shown
the failure to attend the January 8, 2026 or otherwise substantively respond to
the OSC re: Sanctions for Failure to Submit a Case Management Statement and
failure to attend the November 7, 2025 Case Management Conference was due to
mistake, inadvertence, surprise or neglect. Defendant declares he failed to
appear because he had no prior litigation experience and relied on a person
hired through Upwork to assist with filings and docket monitoring. (Defendant
Decl., ¶¶ 5-7.) Defendant seems to abandon his motion under Code of Civil
Procedure section 473, subdivision (b), as he states in reply, "Plaintiff
misstates the motion: Defendant seeks relief from a void default under section
473(d), not merely discretionary relief for excusable neglect." (Reply., p.
3:4-5.) The Court finds that the reasons provided by Defendant do not
constitute excusable neglect under section 473, subdivision (b).

Defendant had notice of the November 7, 2025,
hearing because he was served via mail with the Court's Order continuing the
hearing to November 7, 2025. (See Clerk's Certificate of Mailing Dated
September 4, 2025.) Defendant did not attend the hearing on November 7, 2025
thus the Court set an OSC Re: Sanctions on Defendant for Failure to Submit a
Case Management Statement; Failure to Appear on November 7, 2025.

Although
the Notice was served on Defendant via email – which Defendant did not
consent to – Defendant does not argue he did not have notice of the OSC. (See
Code of Civil Procedure section 1010.6, subd. (a)(2)(A)(ii) (requiring express
consent for electronic service).) As Plaintiff points out in opposition,
Defendant has engaged in willful behavior which the Court had ample grounds to
strike the Answer and enter default. (See Opp., p. 6:2-7.) The Court finds that
this repeated pattern of behavior was not due to mistake, inadvertence, surprise or neglect.

Therefore,
the Motion to Set Aside is DENIED.

Conclusion

Defendant's Motion to Set Aside the
January 8, 2026 Minute Order entering default and striking his answer is DENIED.

Dated: June 29, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court

Request for Default Judgment – Tentative Ruling

1. Plaintiff

seeks \$21,960 in special damages but her evidence only supports \$4,809.77 in special damages. Specifically, Plaintiff seeks \$18,280 for care provided by Dr. Lucina Babayants but the billing invoice from 3/13/26 provided for Dr. Lucina Babayants indicates a total balance of only \$1,129.77 is owed;

2. Plaintiff

is attempting to collect attorney's fees that were awarded in the Order Granting Special Motion to Strike in this default judgment. (Melnik Decl., ¶12, Ex. E.)

3. Plaintiff's

requested general damages of \$5,000,000 are excessive based on the evidence submitted.

Accordingly, Plaintiff Natalia

Melnik's Request for Default Judgment against Defendant Kanioa Kilcher is

DENIED without prejudice. The Order to

Show Cause Re: Default Judgment is continued to September 29, 2026 at 8:30 a.m.